RAMBAM'S LAWS OF REPENTANCE - HILCHOT TESHUVAH

Complete Teshuvah: Letting the Old Self Die

Hilchot Teshuvah Perek 2

Sefer: Mishneh Torah, Hilchot Teshuvah (The Rambam's Laws of Repentance) **Chapter:** 2 (complete) **Shiur:** Given by Dayan Daniel Kada on Zoom, Tuesday 17 September 2024 (Elul 5784)

These notes are based on an automatic (Whisper) transcript of the recording.

Recap of Chapter 1

- For the Rambam, **teshuvah itself is not one of the 613** (at least during the year): you can't be commanded to return to what you were already commanded to do. When you choose to return, **viduy** is the mitzvah.
- **Teshuvah** = leaving the sin in **past, present and future** (regret, stopping, resolve). It is **internal**.
- **Viduy** is **relational**, spoken toward Hashem or another person, and must be **specific**: subject, verb, object.
- The scapegoat, and what Yom Kippur atones for.

"It's very hard, and we're going to see tonight how hard teshuvah is. But it's possible. If it weren't, it wouldn't be expected of us." And what is often *called* teshuvah "isn't necessarily what teshuvah is."

Part 1: Why Start with *Complete* Teshuvah? (Halacha 1)

Normally halacha gives the basic requirement first, then the extra. On Seder night you must recline for the matzah and wine; reclining through the whole meal is **praiseworthy**. Here the Rambam **reverses** it: Halacha 1 is *complete* teshuvah, Halacha 2 is *basic* teshuvah.

איזו היא תשובה גמורה? זה שבא לידו דבר שעבר בו, ואפשר בידו לעשותו, ופירש ולא עשה מפני התשובה, לא מיראה ולא מכשלון כח. כיצד? הרי שבא על אשה בעבירה, ולאחר זמן נתייחד עמה, והוא עומד באהבתו בה ובכח גופו, ובמדינה שעבר בה, ופירש ולא עבר: זהו בעל תשובה גמורה What is complete teshuvah? When the same opportunity comes, he is able to do it, and he refrains because of teshuvah, **not from fear and not from weakness.** For example: he sinned with a woman, and later is alone with her, still attracted to her, with the same physical strength, **in the same place** where he sinned, and he refrains. That is a *ba'al teshuvah gemurah*.

- **"In the same place"**: the Rambam often stresses **environment**. If you now live somewhere you'd be more likely to be caught, refraining isn't complete teshuvah.

זכור את בוראיך בימי בחורותיך, "How many" remember your Creator in the days of your youth." times do we hear people say near the end of their lives, 'it wasn't worth it, what I did when I was younger'? Great, you've worked it out at 70. What you're meant to do is work it out at 20, in the prime of a person's urges and desires."

- Repenting in old age, when you no longer *can*, **"though not the finest teshuvah, still helps; he is a ba'al teshuvah."** Even on the last day of life.

Don't recreate the test

"This is obvious, but it's important to say it." The Rambam is **not** suggesting you seclude yourself with the same woman to prove yourself. We are told never to walk into a test (**nisayon**). His point: **your reality has changed**, so that **if** you were put back in exactly the same situation, Hashem could testify you wouldn't sin. "You're just not that person."

A new identity, not one resolution

"People say before Rosh Hashanah: take on one thing. That's lovely, and there are sources for it. But that's very far from what we're talking about. **We're talking about a whole change of identity.**"

Why Rosh Hashanah comes before Yom Kippur

Why judge before atoning? Because **Rosh Hashanah is for creating the vision**, *who I want to be*. That's why we don't confess details on Rosh Hashanah ("you get lost in the specifics"), and why the **Zohar** discourages praying for personal things. The details come in the Ten Days and on Yom Kippur.

Sealed, and sealed again

Kabbalistic sources speak of further "seals": Yom Kippur is the outer seal, **Hoshana Rabbah** the inner; the Zohar says even on **Simchat Torah** it can change; Chassidim extended it to **Zot Chanukah**. The Rabbi once found in *Nitei Gavriel* a Chassidic rebbe saying the real seal is on **Purim** (from the king's signet in the Megillah). "This makes a mockery."

His understanding, from the Gemara's debate whether the world was created in **Tishrei** or **Nisan** (it was *conceived* in one and *born* in the other): on Rosh Hashanah **we conceive an identity**; we may tweak it on Yom Kippur and after; by **Nisan** we should see its fruit. That's why there is teshuvah on **Erev Rosh Chodesh** and at the end of every week:

"The only way I have found to be effective for teshuvah: on Rosh Hashanah set the goals, the ambitions, the identity of who you want to be. Then set aside times through the year to look back: am I in line? Are there fruits from that identity?" Write it down.

Elazar ben Durdaya: why did he die?

The Gemara (Avodah Zarah 17a): Elazar ben Durdaya spent his life with every prostitute in the world. Once, about to sin, he realised it was wrong. He begged the mountains, the sun and the moon to plead for him, then realised **it depends on me alone**, put his head between his knees, wept **until he died**, and was declared a ba'al teshuvah with a share in Olam HaBa: **יש קונה עולמו בשעה אחת**.

Why would teshuvah kill someone? The Rabbi, drawing on **Rabbi Matis Weinberg**: - Every decision we make is **reversible**. Death is the one thing that isn't, which is why we fear it most. - **Complete teshuvah is letting that option *die*.** The possibility of returning to the sin becomes as unthinkable as speaking to someone you're sitting shiva for. - Elazar ben Durdaya's **whole identity** was that life. When he let it die completely, **he died with it**.

"The reason New Year's resolutions don't last is because **we're not willing to let our previous mindset die.**"

So why start with complete teshuvah?

Because **teshuvah isn't a mitzvah with levels; it's a *reality***, a change of identity. The Rambam first shows you what that reality is (Halacha 1), then the lower version (Halacha 2). Once that reality exists, there is a mitzvah of viduy.

Part 2: Basic Teshuvah, Two Ways (Halacha 2)

ומה היא התשובה? הוא שיעזוב החוטא חטאו, ויסירו ממחשבתו, ויגמור בליבו שלא יעשהו עוד... וכן יתנחם על שעבר... ויעיד עליו יודע תעלומות שלא ישוב לזה החטא לעולם... וצריך להתוודות בשפתיו ולומר עניינות אלו שגמר בליבו

Teshuvah: the sinner leaves his sin, removes it from his thoughts, resolves never to repeat it... regrets the past... until **He who knows all secrets can testify** that he will never return to this sin... and he must **confess with his lips** what he has resolved in his heart.

Rav Soloveitchik: regret first, or resolve first?

In **Chapter 1** the order is **regret, then resolve** (*והרי ניחמתי... ולעולם איני חוזר*). In **Chapter 2** it is **leaving, then resolve, then regret**. "In typical Rav Soloveitchik fashion," there's no contradiction: **two kinds of teshuvah.**

	Emotional teshuvah (Ch. 1 order)	Intellectual teshuvah (Ch. 2 order)
Starts with	Regret: feeling revolted by what you did	A rational decision that this lifestyle is harmful
Then	"I never want to feel like this again," so resolve	Willpower overrides the emotion; regret follows once you're living differently
Example: drinking	You wake up sick and disgusted, empty the fridge, and resolve never again	You love it and never get hangovers, but hear in a class what it does to your liver, decide to stop, and only later look back and say "it wasn't worth it"

This also answers last week's question: "what if you can't feel regret yet?" Start with the intellect. **Both are fine**; the goal is the same, and it's a process.

Why must viduy be *spoken*?

If I've done the whole process in my heart, why say it? - **A participant:** speaking **actualises** it. "Until you have to say 'I did X,' you don't feel it on a real level." - **Mark:** like the **Amidah**, which must at least be mouthed audibly; speaking creates the connection. - **The Rabbi:** both, and also **teshuvah with Hashem mirrors teshuvah with people**. Between people, saying sorry in your mind doesn't work.

Without viduy there is no *kaparah*.

A tzaddik with sins: Minchat Chinuch

The Gemara (Kiddushin): a man betroths a woman "on condition that I am a **tzaddik**." Even if he is known as a terrible person, the betrothal may be valid and she may need a *get*: **perhaps he**

thought teshuvah in his heart. The **Minchat Chinuch** asks: doesn't teshuvah require spoken viduy? Answer: teshuvah is **identity**, viduy brings **kaparah**. "It's possible, maybe surprising to some, for a person to be **a tzaddik full of sins without having kaparah**." He has become a new person; the slate is not yet wiped.

Halacha 3: *Tovel veSheretz beYado*

One who confesses without resolving to leave is like **immersing in a mikveh holding a sheretz**. (There's a halachic discussion whether you are pure *under* the water and impure on emerging, or never pure at all.) **Yom Kippur is the mikveh**: walk out still holding the sin, and you're back where you were.

Specific confession

Being specific makes it real. "I'm sorry" is not the same as "I'm sorry for embarrassing you in public." That's why we say the general **חטאנו**, then the detailed **על חטא**, and **Rabbeinu Nissim's** viduy goes into still more detail.

Part 3: The Paths of Teshuvah (Halacha 4)

מדרכי התשובה: להיות השב צועק תמיד לפני השם בבכי ובתחנונים, ועושה צדקה כפי כחו, ומתרחק הרבה מן הדבר שחטא בו, ומשנה שמו, כלומר אני אחר ואיני אותו האיש שעשה אותן המעשים, ומשנה מעשיו כולן לטובה ולדרך ישרה, וגולה ממקומו, שגלות מכפרת עון, מפני שגורמת לו להיכנע ולהיות עניו ושפל רוח

Until now it has been "a very intellectual process." Now the emotional side. All five come from the Gemara (Rosh Hashanah 16b). The **Lechem Mishneh**: each one alone can tear up a decree; all together is complete.

Path	The Rabbi's explanation
Crying out to Hashem	Teshuvah is emotionally hard; a **relationship** with Hashem gives hope and keeps you from drowning in guilt
Tzedakah	Teshuvah can become **narcissistic**, all "me, my identity, my relationship with Hashem": vertical. Tzedakah restores the **horizontal**. **A participant:** we define ourselves by our money and job; giving it away says *that isn't who I am*. "Lovely, I really like that."
Distancing from the sin	Put fences in place
Changing one's name	**אני אחר**, "I am someone else": a new identity"
Changing one's deeds	Of course
Exile	Leaving the environment that fed the old identity; it brings humility

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Part 4: Public or Private? (Halacha 5)

ושבח גדול לשב שיתוודה ברבים ויודיע פשעיו להם... אבל בעבירות שבין אדם למקום, אינו צריך לפרסם עצמו, ועזות פנים היא לו אם גילם

The Gemara reconciles **לא יצליח מכסה פשעיו** ("he who covers his sins will not prosper") with **אשרי... כסוי חטאה** ("happy is he whose sin is covered"): 1. Between people: publicise; between you and Hashem: keep private. **(The Rambam's choice.)** 2. Sins already publicly known: confess publicly; private sins: privately.

The **Ra'avad** asks why the Rambam ignores the second answer. The **Lechem Mishneh**: read the Rambam's wording carefully and he includes it; publicising private sins against Hashem causes **chillul Hashem** ("if he does it, so can I").

The Rabbi's application: **if you wronged someone in public, apologise in public.** "Very hard, I know. But that really is what's suggested."

Part 5: The Ten Days and Yom Kippur (Halachot 6–8)

אף על פי שהתשובה והצעקה יפה לעולם, בעשרה הימים שבין ראש השנה ויום הכפורים היא יפה ביותר ומתקבלת היא מיד... במה דברים אמורים? ביחיד. אבל צבור, כל זמן שעושים תשובה וצועקין בלב שלם, הם נענין

Why should the time matter, if teshuvah is teshuvah? Psychologically, **everyone is doing it together**, so it is more heartfelt and genuine. A **community** has that power all year.

יום הכפורים... הוא קץ מחילה וסליחה לישראל

Note: **mechilah and selichah**, not *kaparah*. As Chapter 1 showed, Yom Kippur doesn't fully wipe the slate for the gravest sins.

לפיכך חייבים הכל לעשות תשובה ולהתוודות ביום הכפורים

The first time the Rambam calls teshuvah an *obligation*. No contradiction: Yom Kippur's mitzvah is to **be atoned** (**לפני ה' תטהרו**), which is only possible through teshuvah and viduy. So on Yom Kippur teshuvah becomes required.

Viduy before the meal: "in case he chokes"

ומצוות וידוי יום הכפורים שיתחיל מערב היום קודם שיאכל, שמא יחנק בסעודה

"One of the strangest halachot." Nobody says *keep Shabbat from Friday lunchtime in case you're run over on the way home*. Why pre-empt? Because **teshuvah isn't a time-bound mitzvah like sukkah; it's a reality, a mindset**, and it can happen any time. So "just in case, do it now."

That's also why we confess at **every** Yom Kippur prayer, in the middle of the Amidah: repeating it **reinforces** *I'm a different person.* The core of viduy is **אבל אנחנו חטאנו**.

Confessing last year's sins again

עבירות שהתוודה עליהן ביום הכפורים זה, חוזר ומתוודה עליהן ביום הכפורים אחר... שנאמר: וחטאתי נגדי תמיד

"Modern psychology wouldn't be happy with this." Not every day, but **once a year**, reflect on where you came from, as a precaution against slipping back.

Part 6: Between People (Halachot 9–11)

אין התשובה ולא יום הכפורים מכפרין אלא על עבירות שבין אדם למקום... אבל עבירות שבין אדם לחבירו... אינו נמחל לו לעולם עד שיתן לחבירו מה שהוא חייב לו וירצהו. אף על פי שהחזיר לו ממון... צריך לרצותו ולשאול ממנו שימחול לו. אפילו לא הקניט את חבירו אלא בדברים, צריך לפייסו

Paying back the money isn't enough; you must **repair the relationship**, even for words alone (*ona'at devarim*).

Three rows of three

לא רצה חבירו למחול לו, מביא לו שורה של שלשה בני אדם מריעיו... לא נתרצה להן, מביא לו שנייה ושלישית. לא רצה, מניחו והולך לו, וזה שלא מחל הוא החוטא. ואם היה רבו, הולך ובא אפילו אלף פעמים

Spot the difference with the Shulchan Aruch, the Rabbi asked: - A participant noticed the Shulchan Aruch omits that **the one who refuses is the sinner**, focusing on the one asking. "True." - The halachic difference: the **Rambam** has you first ask **alone**, then bring three groups of three. The **Shulchan Aruch** goes straight to the groups. The **Bi'ur Halachah** says the Rambam is right; the first attempt should be one-to-one. - Total: nine people plus you = **ten**, which explains Halacha 11: if the person has **died**, you bring **ten** people to his grave and say "I sinned against Hashem and against this man." - "Has anyone ever seen anyone do this?"

Halacha 10: Don't be cruel

אסור לאדם להיות אכזרי ולא יתפייס... ובשעה שמבקש ממנו החוטא למחול, מוחל בלב שלם ובנפש חפצה... שזה הוא דרכם של זרע ישראל

"One of the hardest halachot to keep."

Daniel (chat): does forgiving mean rebuilding the relationship? No. Forgiving means **no longer harbouring ill will**. "Are you required to go and be friends again? Of course not... you choose who your friends are."

Are there things you needn't forgive? The **Rema** (from the **Maharil**): if someone **defamed** you, you need not forgive, because it **can't be repaired**; once a reputation is ruined, it spreads. The Rabbi suggests a principle: **irreparable** harms. "Someone murders a person's child, *chas veshalom*. Are you going to tell me I'm a sinner if I can't rid my heart of hatred? **The Torah wasn't given to angels.**" Try your best, but be realistic.

Robert: must we forgive non-Jews? (He mentioned people who have done things to Israel this past year.) "Take it away and think about it." Halacha 10 frames it as **who we are** ("not the way of the seed of Israel to harbour hatred"), so it's about you as much as them, which might suggest it's universal. And forgiveness is only owed to someone who **genuinely** asks: through the whole process, three rows of three.

The call an hour before Yom Kippur

"There are certain people who call you an hour before Yom Kippur: 'Are you *mochel* me for anything?'" They had all Elul and the Ten Days; now they want to feel good going in. "You don't want to sound harsh on Erev Yom Kippur, so you often end up **lying**: 'yeah, I'm mochel.' You have no duty to forgive that."

The **Ben Ish Chai** says to ask **parents** for mechilah: with people close to you, a general "if I did anything, forgive me" is genuine and right. But where something specific went wrong, a vague

request isn't mechilah. "If we were brave we'd say: I'm not willing to forgive you now. Let's speak after Yom Kippur."

Avram and Lot: sometimes, separate

A participant: when Avram's and Lot's shepherds quarrelled, Avram said **הפרד נא מעלי**, "please separate from me." Sometimes the right teshuvah is to **not** continue a relationship that would turn toxic. "Fantastic. Precisely what Avraham says: let's be far-away friends rather than close friends who keep falling out." Boundaries are legitimate.

The same participant offered another reading of Elazar ben Durdaya: perhaps Providence took him before he could slip back. The Rabbi: "Difficult, because the Gemara uses this as **the showcase** of what teshuvah is. Something to think about; I'm not convinced."

Summary

1. **Complete teshuvah**: same person, same place, same desire, same strength, and you don't. Not by testing yourself, but by **becoming someone else**.
2. **Let the old self die**: Elazar ben Durdaya. New Year's resolutions fail because we won't let the old mindset die.
3. **Rosh Hashanah = vision**; review it through the year (Erev Shabbat, Erev Rosh Chodesh); expect fruit by Nisan.
4. **Two routes** (Rav Soloveitchik): emotional (regret leads) or intellectual (resolve leads).
5. **Viduy must be spoken and specific.** Without it, identity without *kaparah* (Minchat Chinuch).
6. **Paths of teshuvah**: crying out, tzedakah, distance, a new "name," new deeds, exile.
7. Public sins against people: confess publicly. Private sins against Hashem: privately.
8. **Yom Kippur makes teshuvah obligatory**; confess before the last meal, and again next year.
9. **Between people**: pay, appease, ask (alone, then three rows of three). **Forgive** wholeheartedly, which doesn't oblige you to rebuild the relationship; and some harms may be beyond what a human can be expected to forgive.

"As much as you benefit from the shiur, I benefit from giving it… I hope we're able together to go into Yom Kippur with this perspective."

Coming Up

Next week is the **shloshim of Rabbi Eliyahu** (as transcribed), so the shiur will be rescheduled. Then **Chapter 3**.

Watch or listen to this shiur: youtu.be/uVUaRwZeKxc · More shiurim: rabbikada.com